

Home Loan Agreement

CUSTOMER NAME	
APPLICATION ID	
PRODUCT	☐ YES-Premier Home Loans ☐ YES-Khushi Home Loans

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Terms and Conditions Applicable to Home Loan

The person(s) named in the Schedule-cum-Key Fact Statement hereto (hereinafter referred to as the “**Schedule**”) being borrowers and co-borrowers, hereinafter collectively referred to as “**Borrower**” which expression shall, unless it be repugnant to the context or meaning thereof, shall include: (i) in the event that the Borrower is a Company within the meaning of the Companies Act, 2013 or a Limited Liability Partnership, incorporated under the Limited Liability Partnership Act, 2008, its successors; (ii) in the event that the Borrower is a partnership firm for the purposes of the Indian Partnership Act, 1932, the partners for the time being and from time to time and their respective legal heirs, executors and administrators, legal representatives and successors; (iii) in the event that the Borrower is a sole proprietorship, the sole proprietor and his/ her legal heirs, administrators, executors and legal representatives; (iv) in the event that the Borrower is an individual, his/her legal heirs, administrators and executors; (v) in the event that the Borrower is a joint Hindu Undivided Family, the Karta and any or each of the adult members of the HUF and their survivor(s) and his / her / their respective heirs, executors, administrators; (vi) in the event that the Borrower is a Society, the members of the governing body of the Society and any new members elected, appointed or co-opted thereon; (vi) in the event that the Borrower is a Trust, the Trustee or Trustees for the time being thereof and their respective legal heirs, executors, administrators and successors.

In favour of:

YES BANK LIMITED, a company within the meaning of the Companies Act, 2013 and a banking company having license as such from the Reserve Bank of India under the provisions of the Banking Regulation Act, 1949, and having its registered office at **YES BANK House, Off Western Express Highway, Santacruz East, Mumbai - 400055**, hereinafter referred to as the “**Bank**” which expression, unless it be repugnant to the context or meaning thereof, shall include its successors and assigns.

The Borrower hereby irrevocably and unconditionally agrees to abide by the following terms and conditions:

1. In case of there being more than one Borrowers (i.e. there being co-borrowers), the reference to the term “Borrower” shall be deemed to be as if it were plural and this document shall be read accordingly as if made and liabilities undertaken by each of them jointly and severally. Reference to the masculine gender includes reference to the feminine and neuter genders and vice versa.
2. Pursuant to the application made by the Borrower in the Loan Application Form (“**Application**”), loan sanctioned/as may be sanctioned by the Bank for an amount not exceeding the amount mentioned in the Schedule hereto (hereinafter referred to as “**Loan**”), shall be governed by these terms and conditions.
3. The Loan shall be subject to and upon the terms and conditions contained in the Application, Sanction letter and/or this document. The Bank may disburse the Loan / Facility or any part thereof (“**Disbursement**”) at its own discretion. Notwithstanding anything contained herein, the Bank may at its sole discretion, suspend or cancel the Loan / Facility if the same is not utilized within 15 days of the issuance of instrument / instruction for Disbursement, or (ii) the Borrower may cancel the Loan within 15 days of Disbursement; provided that in case of each (i) and (ii) the cancellation shall take effect only when the Borrower has paid to the Bank in full the total Outstanding Balance (defined hereinafter) including all the interest, and all other charges. The Borrower shall use the Loan only for the purpose stated in the Application and not for any other purpose including making investment in the capital market or any speculative or illegal or anti-social purpose.
4. The Loan, interest, compound interest, Penal charges, any other charges, dues and monies payable, costs and expenses reimbursable, as outstanding from time to time and whether any of them due or not, are hereinafter collectively referred to as “**Outstanding Balance**”. The Borrower shall pay interest on the Loan, the unpaid due interest and all other outstanding charges and monies (except the Penal charges), at the rate of interest specified in the Schedule hereto, on the outstanding daily balance from the date of Disbursement, compoundable at monthly rests. The Bank in its sole discretion would be entitled to change the said rate of interest from time to time including on account of changes made by the Reserve Bank of India, which would be intimated to the

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Borrower and would be binding upon the Borrower. The Borrower shall also pay and bear all interest tax, if any, as applicable from time to time. The Borrower shall repay the Loan and pay the interest that is due from time to time by way of equated monthly installments (EMIs) as specified in the Schedule or as may be specified by the Bank from time to time (time being the essence of the contract). In case of any default, the Borrower shall without prejudice to Bank's other rights and remedies, pay penal charges at the rate mentioned in the Schedule hereto/ Application or as may be prescribed by the Bank, over and above the then applicable rate of interest till full payment is made/default is cured. This liability shall not act as justification for any default.

5. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of India and both [Parties] hereby submit to the exclusive jurisdiction of the courts or tribunals of the branch of the [Bank] where [Disbursement] was made. However, the said exclusivity shall not restrict the [Bank] to pursue before any other courts/tribunals of competent jurisdiction at any other place.

Arbitration (including Online Dispute Resolution("ODR"))

ODR aims to make the justice delivery system affordable, accessible, cost-effective, predictable, reliable and transparent, while ensuring independence and impartiality of the arbitrators and the alternative dispute resolution mechanism.

- I. Any dispute, difference, controversy or claim(s) arising out of, relating to, or in connection with this [Agreement], or [Loan] or other [Transaction Documents], or in any way relating hereto, or any terms, conditions or provision herein mentioned or the construction or interpretation thereof or otherwise in relation thereto (each a "Dispute"), the [Parties] shall first endeavour to resolve such Dispute by mutual discussion, failing which the same shall be referred to arbitration, before a sole arbitrator to be appointed from the panel maintained by an agency or institution, independent, impartial and neutral, engaged in providing ODR mechanism, enlisted by the [Bank] on an arm's length basis and in accordance with the Arbitration and Conciliation Act, 1996, or any statutory amendments thereof, from time to time being in force.
- II. All proceedings of such arbitration shall be in the English language. The seat and venue of the arbitration shall be the place of the branch of the [Bank] where [Disbursement] was made or such other place as the [Bank] may determine. In case, the arbitration is via ODR, the seat and venue shall be in India and can be conducted online and all the digital records of the ODR proceedings shall be preserved in India.
- III. The arbitrators engaged by the agency/institution (including those providing ODR mechanism) are not directly or indirectly chosen by the Bank.
- IV. [Parties] jointly agree and authorise [the Bank] to decide on the agency/institution and to engage with them to provide the name(s) of the arbitrator(s) on their panel.
- V. The arbitrator appointed by the said agency/institution shall carry out the arbitration proceedings either physically or via ODR, as mutually decided by the [Parties].
- VI. The [Parties] shall submit their pleadings along with documentary evidence, if any, to the sole arbitrator through the appointed agency/institution.

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VII. In the event of death, refusal, neglect, inability, or incapability of the person so appointed to act as an arbitrator, a new arbitrator shall be appointed in place of the said arbitrator, as may be mutually agreed between the Parties. The award of the arbitrator shall be final and binding on all [Parties] concerned. All expenses in relation to such arbitration shall be borne by the respective [Party] in accordance with the award of the arbitrator or by the [Party] against whom an award is passed, as the case may be.

VIII. The existence or subsistence of a Dispute between the [Parties], or the commencement or continuation of arbitration proceedings, shall not, in any manner, prevent or postpone the performance of those obligations of [Parties] under this [Agreement] which are not in dispute, and the arbitrator shall give due consideration to such performance, if any, in making a final award.

6. The Borrower hereby agrees and acknowledges that the Facility shall be subject to the guidelines issued by Reserve Bank of India ("RBI"), from time to time, and that in case of any failure/default/delay in payment/repayment/ reimbursement, as the case may be, of any interest/ commission/ principal amounts under the Facility, the Facility may be classified as Special Mention Account ("SMA") and/ or Non Performing Asset ("NPA") in accordance with the guidelines issued by the RBI, from time to time.

The Borrower further agrees, acknowledges and confirms that immediately upon any default, the account of the Borrower may be classified as SMA as follows, subject to the guidelines issued by RBI, from time to time:

In case of the Facility is not sanctioned on revolving basis		In case of the Facility is sanctioned on revolving basis	
SMA Sub-categories	Basis for classification – Principal or interest/ commission payment or any other amount wholly or partly overdue	SMA Sub-categories	Basis for classification – Outstanding balance remains continuously in excess of the sanctioned limit or drawing power, whichever is lower, for a period of:
SMA-0	Upto 30 days	-	
SMA-1	More than 30 days and upto 60 days	SMA-1	More than 30 days and upto 60 days
SMA-2	More than 60 days and upto 90 days	SMA-2	More than 60 days and upto 90 days

Further, the Borrower is aware that the account of the Borrower may be classified as NPA in accordance with RBI Master Circular - Prudential norms on Income Recognition, Asset Classification and Provisioning pertaining to Advances, as amended from time to time and other applicable guidelines issued by RBI, from time to time.

The Borrower irrevocably and unconditionally agrees and confirms that it shall not raise any dispute regarding the classification of the Facility/Borrower's account as SMA and/ or NPA in accordance with the above and as per guidelines issued by RBI, from time to time.

The Borrower hereby unconditionally and irrevocably agrees that the welcome letter and repayment schedule shall form an integral part of the loan Agreement and shall be read long with the Schedule mentioned in the loan agreement. The commercial terms governing the loan facility including the exact breakup between principal and interest, and other charges shall be shared with the borrower along with the welcome letter which shall be binding on the Borrower

Illustrative movement of an account to SMA category to NPA category based on delay I nonpayment of dues and subsequent upgradation to Standard category at day end

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Due date of payment	Payment date	Payment Covers	Age of oldest dues in day	SMA/NPA Categorization on	SMA since date/ SMA Class date	NPA categorization	NPA Date
01.01.2022	01.01.2022	Entire dues up to 01.01.2022	0	Nil	NA	NA	NA
01.02.2022	01.02.2022	Partly paid dues of 01.02.2022	1	SMA-0	01.02.2022	NA	NA
01.02.2022	01.02.2022	Partly paid dues of 01.02.2022	2	SMA-0	01.02.2022	NA	NA
01.03.2022		Dues of 01.02.2022 not fully paid 01.03.2022 is also due at EOD 01.03.2022	29	SMA-0	01.02.2022	NA	NA
		Dues of 01.02.2022 not fully paid, Due for 01.03.2022 not paid at EOD 01.03.2022	1	SMA-0	01.03.2022	NA	NA
		No payment of full dues of 01.02.2022 and 01.03.2022 at EOD 03.03.2022	31	SMA-1	1.02.2022/ 3.03.2022	NA	NA
		Dues of 01.02.2022 fully paid , Due for 01.03.2022 not fully paid at EOD 1.03.2022	1	SMA-0	01.03.2022	NA	NA
01.04.2022		No payment of dues of 01.02.2022, 01.03.2022 an amount due on 01.4.2022 at EOD 1.04.2022	60	SMA-1	1.02.2022/ 3.03.2022	NA	NA
		No payment of dues of 01.02.2022 till 01.04.2022 at EOD 02.04.2022	61	SMA-2	01.02.2022 /02.04.2022	NA	NA
01.05.2022		No payment of dues of 01.02.2022 till 01.05.22 at EOD 01.05.2022	90	SMA-2	01.02.2022 /02.04.2022	NA	NA
		No payment of dues of 01.02.2022 till 01.05.22 at EOD 02.05.2022	91	NPA	Na	NPA	02.05.2022
01.06.2022	01.06.2022	Fully Paid dues of 01.02.2022 at EOD 01.06.2022	93	NPA	Na	NPA	02.05.2022
01.07.2022	01.07.2022	Paid entire dues of 1.03.2022 & 01.04.2022 at EOD 01.07.2022	62	NPA	Na	NPA	02.05.2022
01.08.2022	01.08.2022	Paid entire dues of 1.05.2022 & 01.06.2022 at EOD 01.08.2022	32	NPA	Na	NPA	02.05.2022
01.09.2022	01.09.2022	Paid entire dues of 01.07.2022 & 01.08.2022 at EOD 1.09.2022	1	NPA	Na	NPA	02.05.2022
01.10.2022	01.10.2022	Paid entire dues of 01.09.2022 & 01.10.2022	0	Standard Account with no overdue	Na	NA	STD from 01.10.2022

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The Borrower understand that the aforesaid few examples are illustrative and not exhaustive in nature covering common scenarios, and that, the IRACP norms and clarifications provided by RBI on the subjects referred above will prevail.

7. The original security/property documents, if any, submitted by the Borrower at the time of availing the loan facility, will be returned to the Borrower upon receiving full payment and closure of the loan account within a period of thirty (30) days. Post closure of the loan, the Bank will issue the necessary No Objection Certificate (NOC) to the Borrower for the removal of the charge registered with the relevant registries. Original property/security documents after the full repayment/ settlement of the loan account, can be collected from any Retail Asset loan Centre – <https://www.yes.bank.in/branch-atm-locator>.
8. The Borrower agrees, acknowledges, and undertakes to pay any charges, fees, service charges, or levies that may be imposed in the future by government authorities or any entities constituted by the government. This includes, but is not limited to, any charges arising from the introduction of new rules, regulations, guidelines or amendments to existing laws.
9. **Engagement of Recovery Agents:** The Borrower expressly recognizes and accepts that the Bank shall, without prejudice to its right to perform such activities itself or through its officers or employees, be entitled and have full power and authority to appoint one or more third parties as the Bank may select and to delegate to such third parties all or any of its functions, rights, and powers under this Agreement relating to the administration of the Loan, including the right and authority to collect and receive on behalf of the Bank from the Borrower any payments and other amounts due by the Borrower under this Agreement and to perform and execute all lawful acts, deeds, matters, and things connected therewith and incidental thereto, including sending notices, attending the residence or office of the Borrower or otherwise contacting the Borrower, receiving cash/cheques/drafts/mandates from the Borrower, and giving valid and effectual receipts and discharge to the Borrower. For the purpose aforesaid, the Bank shall be entitled to disclose to any such third parties all necessary or relevant information pertaining to the Borrower and the Loan, and the Borrower hereby consents to such disclosure by the Bank.
10. **Grievance Redressal Mechanism:** The Borrower may register a complaint regarding their loan facility via email to yes touch@yes.bank.in or by calling the Bank's call center at **1800 1200 (toll free)**. If the complaint is not resolved within the communicated time frame, the Borrower may escalate the issue to Grievance Redressal Officer via email to head.grievanceredressal@yes.bank.in or call on +91 (22) 50795173. You may visit our website <https://www.yes.bank.in/contact-us> for further details. The Bank shall within 30 days, resolve the complaint, failing which the Borrower would have the option to escalate the same with the concerned Banking Ombudsman or the Customer Education and Protection Cell (CEPC) in RBI.
11. The Borrower further covenants that it shall be responsibility of the borrower to ensure that the construction of the property is in accordance with the National Building Code of India issued by the Bureau of Indian Standards, other relevant codes and also meets the safety standards prescribed therein. The Borrower hereby undertakes to furnish from time to time, necessary documents in that regard, to the satisfaction of the Bank as and when called upon.
12. The Borrower is aware and agrees that for his/their convenience Bank has agreed to rely upon email/facsimile instructions, which may be given to Bank from time to time. The provisions of this Clause shall apply to any and all matters, communications, directions and instructions whatsoever in connection with various Agreements related to this loan and other related Transaction Documents. Further borrower agrees and confirm that if specifically insisted upon by Bank, then the immediate next day after the day on which any instructions are transmitted to the Bank by email, facsimile, the Borrower shall deliver to the Bank, a hard (and in original) copy of the instruction/s in writing signed by the Borrower or the authorized person(s) (as the case may be).

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The Borrower **hereby unconditionally and irrevocably agrees and undertakes to** and shall also be bound by the **General Terms and Conditions (Version January 2026) available at https://www.yes.bank.in/pdf?name=hl_general_tnc_Jan26.pdf (or scan the QR code below)** which have been read and understood by the Borrower, and shall be deemed to be part and parcel of these terms and conditions and are deemed to have been incorporated herein by reference. For evidence purposes in any court of law or arbitration or before any authority, any paper printouts produced by the Bank from its electronic records shall be final and binding on the Borrower and the Borrower waives any objection it may have for the same being produced by the Bank as proof and in such evidence.

Scan to view General Terms and Conditions applicable to Home Loan



Name of Borrowers	
Name of the Applicant	
Name of Co-applicant / Guarantor 1	
Name of Co-applicant / Guarantor 2	
Name of Co-applicant / Guarantor 3	

Applicant Co-applicant/ Guarantor 1 Co-applicant/ Guarantor 2 Co-applicant/ Guarantor 3

Signed and Delivered by the Applicant & Co-applicant(s) in token of and in witness of them having read (and/or being explained), verified, understood, irrevocably agreed to, accepted, confirmed and declared all the clauses of the 'Terms and Conditions of this Loan document, the Schedule, all contents thereof including all the general terms and conditions contained available in Bank's website, and authenticated accuracy and correctness of the same.

Please Do not sign this agreement if it is blank. Ensure all the relevant sections and documents are duly filled.

Accepted by Yes Bank Limited (signed by Authorized Signatory)

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Disbursal Request Form

To,

Date:

YES BANK Ltd.

Sub: - Disbursement Request for Sanction letter /Facility Ref No._____

I/We have applied for Home Loan with you. Kindly disburse the loan amount according to below details.

Favoring	Amount	Mode (DD /NEFT/RTGS)

Payment towards Insurance, Stamp duty, Processing Fee and other charges

I/We hereby request you to deduct/debit the following from the loan amount sanctioned to me/us

Insurance:

☐ Reliance General Insurance (Property) INR ☐ Max Life Insurance
INR _____

☐ Reliance General Insurance (Health) INR_____

Charges/fee:

Stamp Duty/ESBTR Charges INR_____	Balance	Processing	Fee
INR_____			

I am / We are aware that the following documents are yet to be provided by me/us. I/We request the bank to disburse my loan & I/We agree & undertake to provide the same pending documents within_____ days failing which the Bank may cancel the loan availed by me/us.

Pending documents:

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Signature

Co-Applicant (s)

Declaration for Submission of PDC

I/We agree and acknowledge that any dishonouring of the said cheques would make me/us liable including under the provisions of section 138 of the Negotiable Instruments Act 1881

Serial No.	Cheque No.	Bank Name	Purpose



Standing Instruction and Debit authorization

Account No.

[illegible]

Customer ID

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Version January 1.1 2026

I further undertake that the mandate given by me is irrevocable and shall remain valid and binding until all the amounts due and payable by me are duly paid to the satisfaction of YES Bank Limited. I shall not take any steps for closure of bank account without prior approval in writing from YES Bank Limited.

I also understand and accept that the Bank shall have the right to set-off, without prior intimation to me, the available balances in the designated account for recovery of overdue installments and/or charges (if any) in the loan account.

This debit authorization letter shall be deemed to be an instruction from me/us for the purpose of S.25 of the Payment and Settlement Systems Act.

Signature(s):

(to be signed by the authorized signatories of the account)

Declarations

I/We have applied for a Home Loan with YES Bank Limited against the security/property as defined in the Schedule I of the facility letter/sanction letter reference no.<<_____>>.

Additional declarations- Tick Whichever is applicable

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☐	Property being purchased from a Resident Indian exceeding 50 lacs I/We are aware that as per 194IA of the Income Tax Act, any person who is responsible for paying to a resident transferor any sum by way of consideration for transfer of any immovable property (other than agricultural land), shall, at the time of credit of such sum to the account of the transferor or at the time of payment of such sum in cash or by issue of a cheque or draft or by any other mode, whichever is earlier, deduct an amount equal to one per cent of such sum as income-tax thereon. The purchaser has to deduct TDS @ 1% at the time of payment or credit if the consideration for transfer exceeds Rs. 50 lacs. There is no requirement for purchaser to obtain TAN number. Therefore, since in the present matter, the Bank shall directly be disbursing the loan and making the payment in favor of Seller on my/our behalf and only as per my/our instructions, I/We shall comply with the aforementioned provisions. I/We further shall submit the proof of the deduction & payment of income tax to the Government treasury.
☐	Property being purchased from an NRI: I/We are aware that as per Section 195 of the Income Tax Act, any person who is responsible to make payment to a non-resident, of any sum that may be chargeable under the provisions of the Income Tax Act is required to deduct Income Tax at the prevailing rates at the time of credit to the account of the non resident or at the time of payment thereof in cash or by the issue of a cheque or draft or by any other mode, whichever is earlier. Further Section 195(6) r/w rule 37BB (2) and (1) of the Income Tax Rules states that any person so responsible for making payment as has been mentioned in the aforesaid para shall also furnish information of any such sum payable in form 15CA along with a certificate from a Chartered Accountant in form 15 CB. Therefore, since in the present matter, the Bank shall directly be disbursing the loan and making the payment in favor of NRI Seller on my/our behalf and only as per my/our instructions, I/We shall comply with the aforementioned provisions.
☐	Priority Sector Lending: I/ We including my/our family does not own any other property (pucca house/all weather dwelling unit) in any part of India. <i>*Family for this purpose means and includes the spouse of the member unmarried children, who are dependent on such member, but shall not include legally separated spouse.</i>
☐	Dual Signature That the there is a difference in my signatures and on my request YES BANK LTD is going ahead with the processing of my Loan in spite of the difference in the signatures. I hereby confirm that both these signatures done are by my hand and the same are as below. Signature1 _____ Signature 2 _____ _____

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☐	Dual Name	That my name is _____ That the correct spelling of my name is as above and that the <Document name> submitted by me for availing the loan has typographical error and has misspelt my name as _____. The document however belongs to me. OR My full name when expanded is read as _____ OR Applicable for Married Women That before marriage my name was _____
☐	Dual DOB/No DOB Proof	I _____ was born on at situated in the district in the State of ☐ I have no documentary proof in support of my date of birth. ☐ The date of birth mentioned in <document name> bearing no. _____ is incorrectly mentioned as _____. I declare that my correct date of Birth is _____
☐	Reduction in loan amount	I/We hereby request you restrict/reduce the total amount to be disbursed under the said Housing Loan to Rs. _____ (Rupees _____ only) I/We hereby give our express and irrevocable consent to the Bank for the reduction in the disbursed amount as compared to the sanctioned amount and I/We understand, accept and acknowledge that the Bank shall be acting under my/our specific request(s)/instructions and therefore I/We shall not contest the Bank's action and/or shall not make demands balance disbursement(s), if any. Requesting you to kindly do the needful and change my _____ (mention EMI or Tenure) accordingly.

I/We hereby state and declare that the that information given above is true & correct and nothing has been concealed and I am/We are aware it is illegal and a criminal offence to deliberately furnish false information or suppress information and I /We undertake to be entirely responsible for any loss / expenses incurred by YES Bank Limited on account of relying on my declaration and subsequently make good these losses.

Applicant

Co-applicant(s)

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DECLARATION CUM INDEMNITY

In the matter of loan/ credit facilities in the sum/ limit as mentioned in Schedule I ("the Credit Facility(ies)/Home Loan") granted/ to be granted by YES Bank Limited to the Borrower and Co-Borrowers (hereinafter to be referred to as "Borrowers") as mentioned in Schedule I:

The person(s) as more particularly described in Schedule II and collectively referred to as "Mortgagor(s)" do hereby solemnly affirm and declare as under:

1. I am / We are the owner(s) of the immovable property(s), more particularly mentioned in Schedule I hereunder written (hereinafter referred to as the "Mortgaged Property/ies" and/or "Premises and/or Allotted Property/ies")
2. I /We say that, YES Bank Limited, a banking company within the meaning of Section 5 (c) of the Banking Regulation Act, 1949 and incorporated and registered under the Companies Act, 1956 and deemed to exist under the provisions of Companies Act, 2013, and having its Registered Office at YES BANK HOUSE, Off Western Express Highway, Santacruz (East), Mumbai (hereinafter referred to as YBL" or "Bank" or "Lender") has agreed to grant/granted Credit Facility(ies) as mentioned in Schedule I to the Borrowers on the terms and conditions contained in the application forms, sanction letter, loan agreement, security documents, no objection certificates, all writings and other documents executed or to be executed by the Borrowers in relation or pertaining to the Credit Facility(ies)/Home Loan (hereinafter referred to as the "Facility Documents") and the title documents ("Title Deeds") pertaining to the property/ies being offered as security to the Bank ("Mortgaged Property/ies"/"Allotted Property/ies"), more particularly listed under the Schedule I hereunder are/shall be deposited by me/us with the Bank with an intention of creating equitable mortgage over the Mortgaged Property/ies/Allotted Property/ies in favour of the Bank as security for the due and prompt repayment of Credit Facility(ies)/Home Loan granted by the Bank to the Borrowers.

OR

I/We state and declare that, at the request of the Borrowers and/or Mortgagor(s), and pursuant to Facility Documents, the Bank has enhanced and/or agreed to enhance the existing Credit Facilities/Home Loan by granting certain additional credit facilities, as mentioned under Schedule I aggregating to an amount as detailed under Schedule I hereto ("Enhanced Credit Facilities") and that, one of the conditions for granting the Credit Facility(ies) and/or Enhanced Credit Facilities is that the Credit Facility(ies) and/or Enhanced Credit Facilities shall be secured by a mortgage charge on the Mortgaged Property/ies created in favour of the Bank with the intent that the Title Deeds should remain so deposited as and by way of a mortgage by constructive deposit and/or by way of a mortgage by deposit of Title Deeds in favour of the Bank and the Mortgagor(s) has/have agreed to extend the mortgage charge on the Mortgaged Property/ies to secure the due repayment of the Enhanced Credit Facilities including principal amount of the Credit Facility(ies)/Home Loan, together with interest, liquidated damages, costs, charges and expenses and all other moneys whatsoever due and payable by the Borrowers to the Bank, whether under the Facility Documents or otherwise;

3. Accordingly, on the date and place mentioned in Schedule I and the Title Deeds as more particularly listed under Schedule I hereunder written relating to the Mortgaged Property/ies have been deposited by me/us or shall be deposited by me/us within period of 30 days from the date of disbursement/execution or as may be informed by the Bank from time to time, by first time deposit/constructive delivery with the Bank with an intent to create/extend equitable mortgage by deposit of Title Deeds as security on exclusive charge basis for due and prompt repayment of the Credit Facility(ies)/Home Loan and/or Enhanced Credit Facilities, as the case may be, together with interest, costs, charges and expenses due thereto.
4. In this regard, I/We do hereby solemnly declare and represent to the Bank as under:
 - (i) (a) That I am/We are authorised person of the Mortgagor(s) as mentioned in the Schedule I (hereinafter called "the Society" or "the Company") and as such member I am/we are the owner(s) of

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number of shares of the Society / Company details of which are mentioned in the under Schedule I (hereinafter called "**the Said Shares**")

(b) That by reason of the aforesaid shareholding, as such member, I am / we are entitled to the exclusive possession, use and occupation of the Premises on what is popularly referred to as "ownership basis". (In this Declaration, the term "Premises" shall, unless repugnant to the context or meaning thereof, include also the said Shares).

- (ii) That I/we state and declare that I/we have a good, clear and marketable title to Mortgaged Property/ies free from all encumbrances, and are not subject to any mortgage (except the abovementioned mortgage in favour of the Bank), charge, lien, trust, negative covenant, right of way, trespass, occupation/ possession by any third party, claim, demand, lis pendense, legal proceeding, attachment, injunction, notice or other encumbrance, order, process, impediment or any other process issued by any court or other authority and no suit, action or other proceeding is pending in respect of the Premises or Mortgaged Property/ies and no adverse claims have been made and no notice for acquisition or requisition has been issued or received by me/us or any other person in respect of the Mortgaged Property/ies or any part thereof and/or deficiencies and/or defects and no other person has any share, right, title, interest or claim in, to or upon the Mortgaged Property/ies or Premises which have been acquired by me/ us under the Title Deeds as more particularly under Schedule I and that the Mortgaged Property/ies/ Allotted Property/ies are in my/our exclusive possession and no adverse claim has been made in respect of the Mortgaged Property/ies and/or Allotted Property/ies and/or Premises .I further state and declare that, I/ we have not received any notice of any intended or compulsory acquisition or requisition of the Mortgaged Property/ies and/or /Allotted Property/ies and to the best of my/ our knowledge no notice or notification of any kind that will adversely affect the Mortgaged Property/ies and/or Allotted Property/ies in any manner has been issued or published nor are the Mortgaged Property/ies and/or /Allotted Property/ies and/or Premises reserved for any purpose.
- (iii) I/We state and confirm that, all applicable provisions of the Urban Land (Ceiling and Regulation) Act, 1976 for transferring the Mortgaged Property/ies in favour of the Bank by way of mortgage have been duly complied with.
- (iv) That I / we have duly paid and will at all times during the subsistence of the present mortgage / until the Borrower's dues are paid to the Bank in full, continue to duly pay the rates, taxes, cesses, assessments, revenues, duties, society charges, public demands, and other outgoings and amounts now or hereafter due or payable in respect of the Mortgaged Property/ies and to duly observe, perform and comply with all the rules, regulations, laws, bye-laws, covenants, terms and conditions in connection with the Mortgaged Property/ies.
- (v) That I/ we have not done and shall not at any time do any act, deed, matter, or thing which may adversely affect or prejudice in any manner the Bank's security and/ or interests and that I/we will not sell, transfer, assign, let out, encumber, mortgage, transfer, charge, grant any leave or license, induct any person in or part with or otherwise deal with the Mortgaged Property/ies and/or Allotted Property/ies during the subsistence of the mortgage / until the Borrower's dues have paid to the Bank in full, unless I/we have her obtained the Bank's written permission to do so (which permission the Bank shall be entitled to withhold or refuse without assigning any reason).
- (vi) That I/we have observed and performed and will duly observe, comply and perform all the rules, regulations and bye-laws of the society, company or other association formed/ to be formed and the terms and conditions on which the Mortgaged Property/ies and/or Allotted Property/ies have been acquired and that I/we have obtained the permission of the concerned society / association / company / owner / builder and / and all other competent authorities and persons for creating a mortgage on the Mortgaged Property/ies and/or Allotted Property/ies in favour of the Bank I/we will not do or omit to do anything whereby Mortgaged Property/ies and/or Allotted Property/ies or the Bank's security or interests may be prejudicially affected in any manner whatsoever.
- (vii) That I/we have acquired the Mortgaged Property/ies and/or Allotted Property/ies with my/our self-acquired funds and no other person has any share, right, title or interest of any kind or nature whatsoever in the Mortgaged Property/ies and/or Allotted Property/ies that I/we have the

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necessary powers and am/are free to secure the Borrowers' dues in the manner done by me/us and I/we am/are not under any statutory, contractual or other restriction or disability to do so. I further state and declare that I/we will at all times and as and when called upon to do so by the Bank, make out a clear and marketable title to the Mortgaged Property/ies and/or Allotted Property/ies to the satisfaction of the Bank and/or its legal counsel, free from all reasonable doubts, claims and encumbrances.

- (viii) I/We declare that I/We have not entered into any agreement for sale or otherwise with any person or party in respect of the Mortgaged Property/ies and/or Premises and/or Allotted Property/ies and that I/ we have in my / our possession, power and control only those documents, evidence and writings relating to the Mortgaged Property/ies and/or Premises and/or Allotted Property/ies which have been handed over to the Bank and the same may be retained or dealt with in such manner as the Bank may deem fit. If at any time hereafter any further Title Deeds relating to the Mortgaged Property/ies and/or Premises and/or Allotted Property/ies come into my/ our possession, power or control, I/we shall hand over the same to the Bank to perfect the security created/ proposed to be created by me/ us over and in respect of the Mortgaged Property/ies and/or Allotted Property/ies in favour of the Bank within the period stipulated by the Bank from time to time.
- (ix) That I/we have scrutinised the building plans, commencement certificate and all the requisite permission pertaining to the Mortgaged Property/ies and/or Allotted Property/ies and that the construction is in accordance with laws, as per the approved plans, certificates and permissions and of a satisfactory and standard quality and that no material change has taken place which would affect the construction / purchase / title of the Mortgaged Property/ies and/or Allotted Property/ies where the Mortgaged Property/ies and/or Allotted Property/ies are at present under construction.
- (x) I/We shall obtain/have obtained necessary permission from the competent authorities for the construction of the building and, shall get/have got the building plan approved/sanctioned.
- (xi) I/We confirm and undertake that the I/We-
 - a. have not/ violated/shall not violate the sanctioned plan
 - b. all construction is /shall be done strictly as per the sanctioned plan
 - c. all statutory requirements are/shall be fulfilled
- (xii) the completion certificate shall be obtained from the competent authority within 3 months of completion of construction; if not obtained.

In addition to the clauses mentioned above; the clauses that are mentioned below shall become applicable on case to case basis.

In case of loan availed for plot purchase and construction of house thereon OR Self-construction:

- (xiii) I/We have commenced/shall commence construction on the said plot of land within a period of 18 months from the date of purchase of the plot. I/We further confirm and undertake to submit the necessary proof to the Bank within a period of 18 months from the purchase of the plot with respect to commencement of the construction on the said plot of land to the satisfaction of the Bank.
- (xiv) I/We on completion of the construction, if called upon by the Bank, execute an affidavit in favour of the Bank specifically affirming that the building has been constructed or improvement or extension has been carried out as per approved sanction building plan and /or building bye-laws and wherever applicable has completion certificate issued by the competed authority and deliver, alongwith the affidavit, a copy of the completion certificate.

In case of Balance Transfer/Loan Takeover:

- (xv) The Bank has, pursuant to my/our request, sanctioned me the Home Loan amounting to the sum as mentioned in the Schedule I by way of take over of my/our existing Home Loan from the Existing Lender as mentioned in under Schedule I against mortgage of my/our the Mortgaged Property/ies described under Schedule I hereunder and that is presently mortgaged to Existing Lender.
- (xvi) I/We confirm that the Title Deeds in respect of the Mortgaged Property/ies are in a proper condition

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- and are not charred, torn or laminated.
- (xvii) I/We shall ensure that the Existing Lender directly deposits the Title Deeds with respect to my/our Mortgaged Property/ies with the Bank within 30 days from the date of issuance of the cheque/pay order by the Bank for the Home Loan amount.
 - (xviii) I/We confirm that in the event of the Existing Lender not handing over my/our Title Deeds with respect to my/our Mortgaged Property/ies directly to the Bank on or before the aforesaid stipulated period, I /We shall accompany with the Bank's official and collect the Title Deeds of my/our Mortgaged Property/ies from Existing Lender and submit the same to the Bank within 15 days from the date of expiry of the aforesaid stipulated period in order to enable the Bank to create a valid mortgage in the form acceptable to the Bank.
 - (xix) I/We confirm that in the event of Existing Lender handing over the Title Deeds to me/us directly or if under any circumstances I/we are in possession of the Title Deeds, we shall handover the documents immediately to YES BANK in order to enable the Bank to create a valid mortgage in the form acceptable to the Bank.
 - (xx) I/We confirm that any shortfall arising on account of difference in the Home Loan amount sanctioned to me/us by the Bank and the loan outstanding with the Existing Lender on the date of closure of such loan shall be borne/paid by me/us

In case of Government Allotment case:

- (xxi) I/We confirm that, the Borrowers have applied to the Bank for grant of Home Loan amounting to sum as mentioned in Table B under Schedule 1 for the purchase of residential premises, more particularly described as Allotted Property/ies in under Schedule 1.
- (xxii) I/We confirm that the Developer/Govt. Authority as mentioned in under Schedule I vide Agreement / Allotment Letter as mentioned in under Schedule I has allotted the Allotted Property/ies to the Borrowers and since then the Borrowers are in absolute ownership and possession of the Allotted Property/ies.
- (xxiii) I/We confirm that other than the documents mentioned in the Title Deeds, I/we have no other documents pertaining to the Allotted Property/ies and the registered sale deed of the Allotted Property/ies is yet to be executed in my/our name and the same shall be executed within a period as stipulated by Bank from time to time.
- (xxiv) I/We agree that, based on the request made by the Borrower, the Bank has agreed to sanction the Home Loan based on the Agreement/Allotment letter; basis the no objection certificate issued by the Developer/Government Authority for mortgaging the Allotted Property/ies to the Bank pending submission of the duly registered sale deed of the Allotted Property/ies.
- (xxv) I/We confirm that the documents as mentioned under Critical documents in Schedule I is/are yet to be executed and registered and therefore I / We am / are not in a position to submit the same to the Bank as on date and the same shall be submitted within a period informed by the Bank from time to time. I / We hereby undertake and confirm that as and when the Critical Documents is/are executed and registered, within the period stipulated hereinabove, I / We shall deposit the Critical Documents to the Bank without fail. However, I / We am/ are providing you No Objection Certificate to Mortgage issued by the Developer/Government Authority, basis which the Bank has agreed to sanction/advance the Home Loan to me/us.

Additional clauses in case of B- Khata Properties; any other properties as applicable:

- (xxvi) I/We say that, the Mortgaged Property/ies is/are being used for the purpose of non- agricultural activities and all the requisite approvals conversion of the land and construction of the building from authorized/competent authority in this regard is obtained. All the requisite taxes such as water tax, electricity bill, housing/property tax and betterment charges if any in relation to the Mortgaged Property/ies have been paid to the appropriate Government Authority.
- (xxvii) I/We say that, I shall be the absolute owner of the Mortgaged Property/ies on the execution of the agreement for sale/sale deed and all the relevant original title deeds, revenue documents, mutation

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documents, building plan approvals, various construction approvals, various tax paid receipts, possession certificates, encumbrance certificates, utility bills etc. shall be converted in my name in connection with the Mortgaged Property/ies.

- (xxviii) I/we say that, the Mortgaged Property/ies is situated in the developed area of the city/town/municipal authority and the seller/developer has obtained the valid building plan approval from the competent authority and the construction of the building is not deviated or violated the terms and conditions of the building plan. The Mortgaged Property/ies /house is assessed for tax and the electricity and water service connection, gas connection etc. is in place. In case there are any deviations, I/we undertake to regularize the constructions thereon in accordance with the guidelines of the competent authority and I/we shall submit the requisite documents to the bank, in case of any documents are required.
5. I/We shall use the property only for residential purposes
 6. I/ We confirm to have disclosed all facts relating to the Bank and the accuracy of all information given by me/ us in this regard and also confirm that all prior or subsequent information furnished by me/us in this behalf is/will be true, complete and accurate in every way and the Bank may act on the basis of the said information, particulars and documents.
 7. I/We hereby agree, irrevocably, unconditionally and undertake to execute all other documents and comply with all other formalities as may be required by law, and to pay and discharge by the Mortgagor of any liability for any stamp duty/differential stamp duty, penalty or any other amount that may be levied/become leviable/payable on any of the agreements, including but not limited to the security documents, executed in reference to the Credit Facility(ies) and/or Enhanced Credit Facilities and/or in relation thereto, under the provisions of any Central or State Stamp Acts.
 8. I/We, hereby understand the guidelines set under '**The Registration (Maharashtra Amendment) Act, 2010 – Compulsory Registration of Instruments relating to mortgage by deposit of title deeds**' and I/ We declare that "Notice of Intimation regarding mortgage by way of Deposit of Title Deed" shall be filed by me at the concerned Sub-Registrar's Office. I/We further confirm that the photograph/s, thumb impression/s & signature /s on the aforesaid documents are unfeigned.
 9. I/We hereby declare that I /We shall be responsible to hand over acknowledged copy of the duly filed physical notice of intimation regarding mortgage by way of deposit of title deeds to the Bank within 30 days from the execution of equitable mortgage on the Mortgaged Property/ies, subject to clear and marketable legal and valuation.
 10. I/We further agree and undertake to indemnify and hold harmless the Bank against any charges/penalty levied to the Bank due to non-filing of physical intimation regarding mortgage by way of deposit of title deeds within 30 days from the execution of equitable mortgage.
 11. I/We hereby agree and undertake to indemnify and keep the Bank fully indemnified, saved and harmless of, from and against any loss, damage, expense, risk and all consequence that might arise to the Bank on account of any defect in my/our title to the Mortgaged Property/ies and/or on account of loss/non availability of the title deeds and/or Premises and/or any declaration, statement or assurance being incorrect and/or any breach by me/ us of any declaration, statement assurance or covenant herein and/or on account of any non-performance or non-observance or breach by me/ us and/or the Borrower of any terms, clause, conditions or covenants of any document governing the Credit Facility(ies)/Revised Credit Facilities or any other document or any claim, demand or risk however arising to the Bank with reference to the Mortgaged Property/ies and/or due to photograph/s, thumb impression/s & signature /s on the 'Notice of Intimation regarding Mortgage by way of Deposit of Title Deed' are feigned.
 12. I am / We are making the aforesaid statements and giving the aforesaid declaration and indemnity solemnly and sincerely believe the same to be true and knowing fully well that based on the statements, declarations and indemnities aforesaid the Bank has agreed/may agree to sanction the Credit Facility(ies)/Revised Credit Facilities and to accept mortgage of the Mortgaged Property/ies.
 13. Further, should any risk, loss, detriment, damage, prejudice, expenses or inconvenience arise to YES Bank in holding, transmitting or enforcing the security over the said Immovable Property owing to breach or lacuna in any of the aforesaid assurances and undertakings or any third party claims for any reason whatsoever, I hereby affirm and undertake to indemnify and keep fully and completely indemnified the Bank/Mortgagee against the same in all respects. In such an event, YES Bank Limited

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may recover the amounts payable hereunder from the Borrower/Mortgagors as well as from/against the estate/s of the Borrower/Mortgagor.

14. I/We hereby agree that this undertaking cum indemnity shall : (i) ensure for the benefit of YES Bank Limited and its successors and assignees; (ii) be irrevocable and unconditional; (iii) shall survive till discharge by the Borrower/Mortgagor and the Borrower/Mortgagors of its performance of all its obligations hereunder and under the Facility Agreements and the other transaction documents, to the satisfaction of YES Bank Limited; (iii) not be affected by the insolvency of the Borrower/Mortgagor and the Borrower/Mortgagors; (iv) be binding on its heirs, legal representatives, executors, administrators, successors and permitted assignees, as the case may be; (iv) not be terminated by notice or any change in the respective constitutions of the Borrower/Mortgagor or YES Bank Limited or otherwise for any reason whatsoever.
15. My/Our liability under this Declaration-cum-Indemnity shall be joint and several.
16. Any matter or issue arising under this Declaration- Cum-Indemnity or any dispute hereunder shall, at the Bank's discretion, be subject to the non- exclusive jurisdiction of the Courts of the city of as mentioned in Schedule I hereunder.

Solemnly declared persons mentioned in Schedule I.

Mortgagors/Owner

Schedule I

Sr. No.	Description	Details	
1.	Date of Declaration cum Indemnity		
2.	Branch Office: (Place of deposition, i.e. YES Bank Limited's Office Address)		
3.	Place of deposition, i.e the place of residence/office of the Depositor(s)		
4.	Name of the Bank's Authorized Personnel		
5.	Name of the Authorised Representatives / Constituted Attorney of the Mortgagor(s)		
6.	Jurisdiction		
7.	Names of Borrower & Co-borrowers:		
8.	Details of Credit Facility(ies)	Credit Facilities / Existing Credit Facilities/Home Loan (INR)	Enhanced Credit Facilities (INR)
9.	Existing Lender (if any)		
10.	Name of Developer/Govt. Authority: Date of Allotment Letter:		

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11.	Description of the Mortgaged Property/ies / Allotted Property/ies Details of Mortgagor/Owner: Constitution: Address:	(Boundaries: East: West: North: South: Individual/Proprietorship Firm/Partnership Firm/ Company/LLP/Trust/Society/HUF
	List of the Title Deeds	Original/Copy
	Premises Discription:	

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